

Suaib Khan v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 1 March 2023 · Writ - C No. 7188 of 2023 · **Recovery withdrawn; fresh order to follow Supply Code hearing.**

HEADNOTE

A recovery certificate for alleged electricity-theft dues was withdrawn by the department. The writ was disposed of with liberty to pass a fresh order after hearing the consumer, strictly under the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Suaib Khan filed a writ petition in the Allahabad High Court to quash a recovery certificate dated 17 January 2023 issued against him for electricity dues said to arise from theft of electricity. The State of Uttar Pradesh and two others were respondents. Counsel for the electricity department told the Court that the impugned recovery had been withdrawn and that a fresh order would be passed after the petitioner was given an opportunity of hearing.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::17.10

theft recovery — fresh order after hearing

HOLDING

Once the licensee withdraws a recovery certificate issued for electricity-theft dues, the writ is disposed of with liberty to pass a fresh order only after the consumer is heard and strictly in accordance with the procedure under the U.P. Electricity Supply Code, 2005. ¶ 1

PRINCIPLE TAGS

opportunity-of-hearing-before-fresh-order The department having withdrawn the theft-dues recovery, the Court left it at liberty to pass a fresh order only after hearing the consumer and strictly under the Supply Code, without deciding the dues. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ALLEGED THEFT WAS MADE OUT AND WHAT SUM, IF ANY, IS RECOVERABLE

The impugned recovery was withdrawn. The Court made no finding on theft or quantum and left a fresh order after hearing still to be passed. ¶ 1